

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.: 525931/2020

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AVRAHAM EDERI,

Plaintiff,

**AMENDED
VERIFIED COMPLAINT**

-against-

THE CITY OF NEW YORK, POLICE OFFICER
MARC A. FONTANA, Shield # 16274, POLICE OFFICERS
JOHN/JANE DOES 1-5, AHARON ITZKOWITZ and
STERLING MANAGEMENT SERVICES, INC. and
STERLING MANAGEMENT SERVICES 123, INC.

Defendants.

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Plaintiff AVRAHAM EDERI, for his complaint, by his attorney DAVID A. ZELMAN,
ESQ., and upon information and belief respectfully allege as follows:

I. PRELIMINARY STATEMENT

1. This is a civil rights action in which Plaintiff AVRAHAM EDERI (hereinafter “EDERI”), seeks damages to redress the deprivation, under color of state law, of rights secured to him under the Fourth, Fifth, Sixth, and Fourteenth Amendments of the United States Constitution. It is alleged that Defendants falsely arrested EDERI, maliciously prosecuted him, caused him physical and emotional suffering and denied him his right to a fair trial among other claims. As a result, Plaintiff suffered damages.

II. PARTIES

2. Plaintiff EDERI at all times relevant hereto resided in Brooklyn, NY.

3. Defendant POLICE OFFICER MARC FONTANA, Shield #16274 (hereinafter “FONTANA”) was a NYPD police officer, and at all times relevant hereto, acted in that capacity as agent, servant, and/or employee of Defendant CITY and within the scope of their employment. Defendant FONTANA is sued in his official and individual capacity. .
4. Defendants POLICE OFFICER JOHN/JANE DOE(S) (hereinafter “DOE(S)”) were NYPD police officers, and at all relevant times hereto, acted in that capacity as agents, servants, and/or employees of Defendant CITY and within the scope of their employment. DOE(S) are sued in their official and individual capacity.
5. At all relevant times hereto, Defendants FONTANA and JOHN/JANE DOES were acting under the color of state and local law. Defendants are sued in their individual and official capacities.
6. Defendant AHARON ITKOWITZ, (hereinafter “ITKOWITZ”) is an individual who owns and operates at least one car rental company in Brooklyn, New York which is advertised to the general public. ITKOWITZ is a private individual sued herein personally and as a principal of STERLING MANAGEMENT SERVICES 123 INC. (hereinafter “STERLING”).
7. STERLING is a corporation existing pursuant to the laws of New York State with a principal place of business in Brooklyn, New York and/or New York, New York.

III. FACTS

8. On or about July 16, 2019, EDERI entered into a written car rental agreement with defendant STERLING and ITKOWITZ in Kings County, New York. A contract was signed and money was paid by EDERI as instructed by ITKOWITZ.

9. Thereafter, the car rental agreement was extended by agreement between EDERI and ITKOWITZ and additional monies were paid as instructed by ITKOWITZ.
10. On or about August 28, 2019, EDERI was involved in a traffic accident, through no fault of his own. The accident was a serious one and EDERI called 911 from the scene of the accident to both report the accident and request medical assistance as EDERI was injured by reason of the car accident.
11. Defendant FONTANA as well as JANE/JOHN DOE police officers arrived at the scene of the accident in Brooklyn, New York.
12. Following a brief investigation, defendant FONTANA and/or POLICE OFFICERS JANE/JOHN DOEs determined that the license plate on the vehicle rented to EDERI was allegedly “fake.” FONTANA and/or JANE/JOHN DOEs further determined that the car was both allegedly unregistered and/or uninsured.
13. Despite EDERI informing FONTANA and/or police officers JANE/JOHN DOEs that plaintiff was injured and required medical assistance, officers FONTANA and/or JANE/JOHN Does proceeded to arrest EDERI for several offenses related to the condition of the rental vehicle he was driving at the time of the accident.
14. Defendants FONTANA and/or JANE/JOHN DOEs were fully aware that plaintiff claimed he was driving a rental car and in fact took possession of the rental contract EDERI had signed.
15. Nonetheless, defendants FONTANA and/or JANE/JOHN DOEs proceeded to arrest EDERI for felony offenses despite actual knowledge that EDERI had done nothing to procure the license plate, registration and/or insurance on the vehicle he was driving.

16. EDERI, in need of medical assistance, was locked in the rear of the police vehicle and the car was locked while defendants FONTANA and/or JANE/JOHN DOE's continued to remain at the scene of the accident.
17. Upon returning to the police vehicle, presumably to drive EDERI to the 70th precinct, defendants FONTANA and/or JANE/JOHN DOEs realized that they had locked their keys inside the vehicle and were unable to enter the police vehicle.
18. Plaintiff was required to wait in the rear of the vehicle, with windows closed on a hot day in late August, 2019 while defendants called a service company to open their mistakenly locked police cruiser.
19. Following a very dangerous time in the rear of the police vehicle, plaintiff was transported to the 70th precinct. Plaintiff complained that he needed urgent medical attention, however, his pleas were ignored for several hours as the processing of the arrest was deemed a higher priority than plaintiff's medical needs.
20. Plaintiff was eventually brought to Maimonides Medical center in the early morning hours of August 29, 2019 while still in custody.
21. Following his examination at the hospital, EDERI was returned to the police precinct and ultimately was arraigned.
22. EDERI was require to appear in Court until the criminal matter was dismissed on December 2, 2019 by motion of the District Attorney's office.
23. At all times relevant to this matter, defendants ITKOWITZ and/or STERLING had control over all issues relating to the rental vehicle including whether the vehicle was registered, insured and whether it had a proper license plate displayed.

24. Defendants ITKOWITZ and STERLING were responsible to see to it that EDERI had rented a car which was properly registered and insured and displayed an appropriate license plate.
25. EDERI was imprisoned, suffered damage to his reputation, economic losses, and emotional and psychological distress.
26. That heretofore and on the 15th day of November, 2019, Plaintiff's Notice of Claim and Intention to sue was duly served upon and filed with the CITY; said Notice was filed within ninety (90) days after the cause of action herein accrued and set forth the name and post office address of Plaintiff, the nature of the claim, the time when, the place where, the manner in which the claim arose and the items of damage and injuries sustained.
27. That at least thirty (30) days have elapsed since the demand or claim upon which these actions are predicated was presented to CITY for adjustment or payment thereof and that it has neglected and/or refused to make adjustment or payment thereof.

FIRST CAUSE OF ACTION

Pursuant to § 1983 (FALSE ARREST)

28. Paragraphs 1 through 27 of this complaint are hereby realleged and incorporated by reference herein.
29. That all Defendants had neither valid evidence for the arrest of EDERI nor legal cause or excuse to seize and detain him.
30. That in detaining EDERI without a fair and reliable determination of probable cause, Defendant CITY abused its power and authority as a policymaker of the NYPD under the

color of State and/or local law. It is alleged that CITY, via their agents, servants and employees routinely charged persons with crimes they did not commit. EDERI was but one of those persons.

31. Upon information and belief, it was the policy and/or custom of Defendant CITY to inadequately supervise and train its officers, staff, agents and employees, thereby failing to adequately discourage further constitutional violations on the part of their officers, staff, agents and employees.
32. As a result of the above described policies and customs, the officers, staff, agents and employees of Defendant CITY believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated. In addition, the City of New York had and has a policy, custom, and/or practice of detaining persons for an excessive period of time prior to arraignment.
33. The above described policies and customs demonstrated a deliberate indifference on the part of the policymakers of the CITY to the constitutional rights of arrestees and were the cause of the violations of EDERI's rights alleged herein.
34. By reason of Defendants acts and omissions, Defendant CITY, acting under color of state law and within the scope of its authority, in gross and wanton disregard of EDERI's rights, subjected EDERI to an unlawful detention, in violation of the Fourth and Fourteenth Amendments of the United States Constitution and the laws of the State of New York.

35. By reason of the foregoing, EDERI suffered physical injuries, mental injuries, deprivation of liberty and privacy, terror, humiliation, damage to reputation and other psychological injuries. All of said injuries may be permanent.

SECOND CAUSE OF ACTION

Pursuant to State Law (FALSE ARREST)

36. Paragraphs 1 through 35 are hereby realleged and incorporated by reference herein.
37. The arrest of EDERI was unlawful in that all Defendants had no probable cause to detain, arrest and/or imprison him.
38. That Defendants intended to confine EDERI.
39. That EDERI was conscious of the confinement and did not consent to it.
40. That the confinement was not otherwise privileged.
41. By reason of Defendants acts and omissions, Defendants, acting in gross and wanton disregard of EDERI's rights, deprived him of his liberty when they subjected him to an unlawful, illegal and excessive detention, in violation of State law.
42. That by reason of the foregoing, EDERI suffered physical injuries, mental injuries, economic injury, deprivation of liberty and privacy, terror, humiliation, damage to reputation and other psychological injuries. All of said injuries may be permanent.

THIRD CAUSE OF ACTION

Pursuant to STATE LAW (NEGLIGENCE)

43. Paragraphs 1 through 42 are hereby realleged and incorporated by reference herein.
44. Defendant police officers negligently locked EDERI in the rear of a locked police vehicle on a hot summer day for an excessive period of time.
45. That Defendants had no legal cause or reason to negligently cause physical and emotional suffered to the already injured EDERI.

46. That Defendants violated EDERI's Fourth and Fourteenth Amendment right to be free from unreasonable seizures when he was locked in the rear of the police vehicle without cause and for an excessive period of time.
47. That at the time of the arrest or while in custody, EDERI did not pose a threat to the safety of the arresting officers.
48. That EDERI was not actively resisting arrest or attempting to evade arrest.
49. That defendant CITY, through its officers, agents, and employees, unlawfully subjected EDERI to a physically painful and emotionally damaging experience by negligently locking him in a police vehicle for an excessive period of time.
50. That by reason of Defendants acts and omissions, acting under color of state law and within the scope of his authority, in gross and wanton disregard of EDERI's rights, violated his rights pursuant to the Fourth and Fourteenth Amendments of the United States Constitution.
51. That Defendants had the opportunity to intervene, and failed to do so, to prevent violations of EDERI's civil rights, including but not limited to the right to be free from the application of excessive force.
52. That upon information and belief, it was the policy and/or custom of defendant CITY to inadequately train, supervise, discipline, and/or terminate their officers, staff, agents and employees, thereby failing to adequately discourage further constitutional violations on the part of their officers, staff, agents and employees.
53. That as a result of the above described policies and customs, the officers, staff, agents and employees of defendant CITY, believed that their actions would not be properly

monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.

54. That the above described policies and customs demonstrate a deliberate indifference on the part of the policymakers of defendant CITY to the constitutional rights of arrestees and were the cause of the violations of EDERI's rights alleged herein.
55. By reason of the foregoing, EDERI suffered physical injuries, mental injuries, emotional injuries, economic injury, trauma, humiliation, terror, damage to reputation, and other psychological injuries. All of said injuries may be permanent.

FOURTH CAUSE OF ACTION

Pursuant to State Law (FALSE ARREST)

56. Paragraphs 1 through 55 are hereby realleged and incorporated by reference herein.
57. That Defendants ITKOWITZ and STERLING put in motion a series of events which caused EDERI to become arrested and prosecuted through no fault of his own.
58. That Defendants ITKOWITZ and STERLING intentionally and/or recklessly allowed their unsuspecting customer to drive a vehicle which may not have been properly registered, insured and/or displaying the correct license plates.
59. That Defendants' actions and/or failures to act were a substantial cause in EDERI's arrest and prosecution for felony offenses related to the rental vehicle.
60. That by reason of the foregoing, EDERI suffered physical injuries, mental injuries, emotional injuries, economic injury, trauma, humiliation, terror, damage to reputation, and other psychological injuries. All of said injuries may be permanent.

FIFTH CAUSE OF ACTION

Pursuant to § 1983 (DENIAL OF FAIR TRIAL)

61. Paragraphs 1 through 60 are hereby realleged and incorporated by reference herein.
62. That Defendant FONTANA knew or should have known that the information he provided to the Kings County District Attorney's office and the Criminal Court, Kings County was both false and/or recklessly incomplete so as to cause a false impression by both the Criminal Court and the Kings County District Attorney's office.
63. That Defendant FONTANA's communications misled the Criminal Court, Kings County and the Kings County District Attorney's office and caused EDERI to be prosecuted despite the fact that he had committed no crime.
64. That Defendant FONTANA knew to a moral certainty that EDERI was simply renting a vehicle at the time of the within accident and had no control and/or knowledge as to any registration, insurance and/or license plate issues related to the rental vehicle. Defendant FONTANA was aware that when people rent vehicles, they typically do not investigate any issues such as these as they pertain to a rental vehicle. Nonetheless, defendant FONTANA deliberately misled the Court and the Kings County District Attorney's office with false information regarding EDERI.
65. By reason of Defendant's acts and omissions, Defendants, acting under color of state law and within the scope of its authority, in gross and wanton disregard of EDERI's rights, deprived EDERI of his liberty when it subjected him to an unlawful, illegal and excessive detention, in violation of his due process rights pursuant to the Fourth and Fourteenth Amendments of the United States Constitution and the laws of the State of New York.
66. That in so acting, Defendant CITY, abused its power and authority as policymaker of the New York City Police Department under the color of State and/or local law.

67. That upon information and belief, in 2019, Defendant CITY had a policy or routine practice of detaining and imprisoning individuals for excessive periods prior to arraignment.
68. That upon information and belief, it was the policy and/or custom of Defendant CITY to inadequately train and supervise their officers, staff, agents and employees, thereby failing to adequately discourage further constitutional violations on the part of their officers, staff, agents and employees.
69. That as a result of the above described policies and customs, the officers, staff, agents and employees of Defendant CITY believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.
70. That the above described policies and customs demonstrate a deliberate indifference on the part of the policymakers of Defendant NYPD to the constitutional rights of arrestees and were the cause of the violations of EDERI's rights alleged herein.
71. That Defendant, through its officers, agents and employees, unlawfully incarcerated EDERI for an excessive period of time prior to arraignment.
72. By reason of the foregoing, EDERI suffered mental injuries, economic injury, deprivation of property, liberty and privacy, terror, humiliation, damage to reputation and other psychological injuries. All of said injuries may be permanent.

SIXTH CAUSE OF ACTION

Pursuant to State Law (Negligence)

73. Paragraphs 1 through 72 are hereby realleged and incorporated by reference herein.

74. Defendants ITKOWITZ and STERLING negligently and/or intentionally failed to provide EDERI with a rental vehicle which was legal to drive on the streets of New York City.
75. Said negligence was a substantial factor in bringing about EDERI's arrest and prosecution.
76. As a result of the above negligent and/or reckless behavior of defendants ITKOWITZ and STERLING, plaintiff was caused to suffer a humiliating arrest and prosecution, violation of civil rights, economic damages, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.

SEVENTH CAUSE OF ACTION

Pursuant to State Law (RESPONDEAT SUPERIOR)

77. Paragraphs 1 through 76 are hereby realleged and incorporated by reference herein.
78. That Defendants were acting in furtherance of the duties owed to their employer, defendant CITY.
79. That at all times Defendants were acting within the scope of their employment.
80. That Defendant CITY was able to exercise control over Defendants activities.
81. That Defendant CITY is liable for Defendants actions under the doctrine of respondeat superior. By reason of the foregoing, EDERI suffered physical injuries, mental injuries, emotional injuries, economic injury, trauma, humiliation, terror, damage to reputation, and other psychological injuries. All of said injuries may be permanent.

EIGHTH CAUSE OF ACTION

Pursuant to §1983 (FAILURE TO INTERVENE)

82. Paragraphs 1 through 81 are hereby realleged and incorporated by reference herein.
83. That Defendants JANE/JOHN DOE's failed to intervene when Defendants knew or should have known that Plaintiff's constitutional rights were being violated.
84. That Defendants JANE/JOHN DOE's had a realistic opportunity to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence.
85. That a reasonable person in the Defendants' position would know that Plaintiff's constitutional rights were being violated.
86. That by reason of Defendants' acts and omissions, Defendants, acting under the color of state law and within the scope of their authority, in gross and wanton disregard of Plaintiff's rights, deprived Plaintiff of his liberty when they failed to intervene to protect him from Defendants' violation of Plaintiff's civil rights pursuant to the Fourteenth Amendment of the United States Constitution.
87. That upon information and belief, Defendants had a policy and /or custom of failing to intervene to protect citizens from constitutional violations by police officers. Thus, as a result of the above described policies and customs, Plaintiff was not protected from Defendants' unconstitutional actions. Plaintiff specifically alleges causes of action pursuant to *Monell v. Dep't of Soc. Servs.*, 436 U.S. 658.
88. That by reason of the foregoing, Plaintiff suffered incarceration psychological injuries, traumatic stress, mental anguish, economic damages including attorney's fees, damage to reputation, shame, humiliation, and indignity. All of said injuries may be permanent.

NINTH CAUSE OF ACTION

(Pursuant to Section 1983 and State Law: MALICIOUS PROSECUTION)

89. Paragraphs 1 through 88 are hereby realleged and incorporated by reference herein.
90. That defendant officers, ITKOWITZ and STERLING with malicious and/or reckless

intent, caused EDERI to be arrested and initiated a criminal proceeding despite the knowledge that EDERI had committed no crime.

91. That the criminal matter against EDERI was terminated in his favor and the court dismissed all charges against him.
92. That there was no probable cause for the arrest and criminal proceeding.
93. That by reason of defendants' acts and omissions, defendants, acting under the color of state law and within the scope of their authority, in gross and wanton disregard of EDERI's rights, deprived EDERI of his liberty when they maliciously prosecuted him and subjected him to an unlawful, illegal and excessive detention, in violation of his rights pursuant to the Fourth and Fourteenth Amendments of the United States Constitution.
94. That by reason of the foregoing, EDERI suffered psychological injuries, traumatic stress, posttraumatic stress disorder, mental anguish, economic damages including attorneys' fees, damage to reputation, shame, humiliation, and indignity. All of said injuries may be permanent.

V. ELEVENTH CAUSE OF ACTION

(Pursuant to STATE LAW: BREACH OF DUTY and/or BREACH OF CONTRACT)

95. Paragraphs 1 through 94 are hereby realleged and incorporated by reference herein
96. Defendants ITKOWITZ and/or STERLING entered into a contract with EDERI to rent him a vehicle. EDERI paid ITKOWITZ and/or STERLING for the rental vehicle.
97. Defendants ITKOWITZ and/or STERLING owed EDERI, a member of the general public and a customer, a duty to ensure that the rental vehicle was legal to drive.

98. Defendants ITKOWITZ and/or STERLING breached a duty of care owed to EDERI by providing him with a vehicle which they knew or should have known was illegal to drive and/or likely to result in the arrest of plaintiff.
99. That the conduct of defendants ITKOWITZ and/or STERLING was reckless and/or malicious in that defendants allowed plaintiff, a paying customer and member of the general public to be subject to arrest merely for driving a vehicle supplied by defendants ITKOWITZ and/or STERLING.
100. That by reason of the above, plaintiff EDERI was damaged in that he suffered loss of liberty, psychological injuries, traumatic stress, posttraumatic stress disorder, mental anguish, economic damages including attorneys' fees, damage to reputation, shame, humiliation, and indignity. All of said injuries may be permanent.

INJURY AND DAMAGES

As a result of the acts and conduct complained of herein, Plaintiff have suffered and will continue to suffer emotional pain, suffering, permanent disability, inconvenience, injury to their reputations, loss of enjoyment of life, loss of liberty and other non-pecuniary losses. Plaintiff have further experienced severe emotional and physical distress and loss of love, services, consortium, affection, society and companionship.

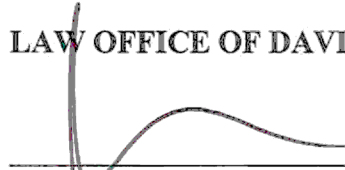
WHEREFORE, Plaintiff respectfully request that judgment be entered:

1. Awarding Plaintiff compensatory damages in a full and fair sum to be determined by a jury;
2. Awarding Plaintiff punitive damages in an amount to be determined by a jury;
3. Awarding Plaintiff interest from August 28, 2019;

4. Awarding Plaintiff reasonable attorney's fees pursuant to 42 USC § 1988; and
5. Granting such other and further relief as to this Court deems proper.

DATED: Brooklyn, New York
February 16, 2021

LAW OFFICE OF DAVID A. ZELMAN



DAVID A. ZELMAN, ESQ.
709 Eastern Parkway
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ATTORNEY VERIFICATION

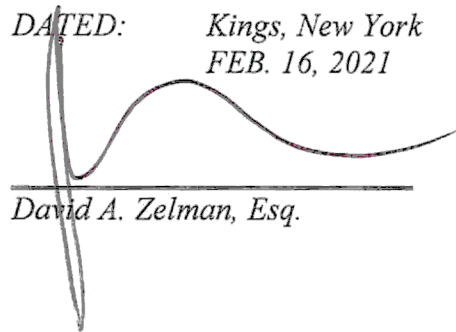
David A. Zelman, Esq., an attorney at law, duly admitted to practice in the Courts of the State of New York, affirms under the penalties of perjury that:

He is the attorney for the plaintiff(s) in the above entitled action. That he has read the foregoing COMPLAINT and knows the contents thereof, and upon information and belief, deponent believes the matters alleged therein to be true.

The reason this Verification is made by deponent and not by the plaintiff(s) is that the plaintiff(s) herein reside(s) in a county other than the one in which the plaintiff's attorneys maintain their office.

The source of deponent's information and the grounds of his belief are communication, papers, reports and investigation contained in the file.

DATED: Kings, New York
FEB. 16, 2021



David A. Zelman, Esq.